

ZONING BOARD OF ADJUSTMENT PUBLIC HEARING AND MEETING
Tuesday, November 25, 2025

A public hearing of the Zoning Board of Adjustment was held on Tuesday, November 25, 2025 at 6:30 PM, at City Hall.

Jay Minkarah, Chair, asked for a Roll Call:

Jay Minkarah, Chair
Josh Nehiley, Vice Chair
JP Boucher
Rob Shaw
Steve Lionel
Joseph Patry - Alternate

Carter Falk, Deputy Planning Manager

Mr. Minkarah explained the Board's procedures, stating that the public is encouraged to submit their comments for future meetings via email to the Planning Department, which is zb@nashuanh.gov, or by mail, at P.O. Box 2019, Nashua, NH, 03061. Mr. Minkarah identified the points of law required for applicants to address relative to variances and special exceptions. Mr. Minkarah explained how testimony we will be given by applicants, those speaking in favor or in opposition to each request, as stated in the Zoning Board of Adjustment (ZBA) By-laws.

- 1. City of Nashua (Owner) Division of Public Works (Applicant) 848 West Hollis Street (Sheet D Lot 54) requesting special exception from Land Use Code Section 190-112 to impact two "other" wetland areas (man-made drainage swales) totaling approximately 3,992 sq. ft to facilitate the construction of the proposed Department of Public Works Garage and Maintenance Facility project. R9 & R30/GMZ Zones, Ward 5. [POSTPONED TO 12-9-2025 ZBA MEETING]**

Voting on this case:

Jay Minkarah
Josh Nehiley
JP Boucher
Rob Shaw
Joseph Patry

Mr. Minkarah stated that this case has been postponed to the December 9, 2025 meeting.

2. Vasu Dev & Latha Srinivasa Dasari (Owners) 21 Hibiscus Way (Sheet C Lot 2698) requesting variance from Land Use Code Section 190-31 to encroach 3 feet into the 6 foot required left side yard setback to construct a 12'x12' shed. FUOD Zone, Ward 5.

Voting on this case:

Jay Minkarah
Josh Nehiley
JP Boucher
Rob Shaw
Steve Lionel

Vasu Dasari, 21 Hibiscus Way, Nashua, NH. Mr. Dasari said that they are requesting a variance for a 12'x12' shed to be placed in the back yard, it would have a three-foot side yard setback; the property is zoned FUOD. He said that the property is unique, in that the lot is narrower in the rear, and there is a good canopy of pine trees covering the back. He said that the proposed shed location has always been barren, and is a great location for the shed. He said the variance will allow reasonable use of the yard, if it were to meet the setback, it would take up valuable yard space. He said that there will still be adequate light and privacy, and the shed will match the home, and it meets the variance points of law.

Mr. Shaw asked if the red outline on the pictures depicts the exact shed location, with the three foot setback.

Mr. Dasani said it does, the area shows a 14'x14' boundary. He said it would be eight to nine feet to the rear property line.

SPEAKING IN FAVOR:

No one.

SPEAKING IN OPPOSITION OR WITH QUESTIONS OR CONCERNS:

Mr. Minkarah read a letter from Rokesh Prasad, 5 Daffodil Drive, Nashua, NH.

SPEAKING IN FAVOR - REBUTTAL:

Mr. Dasari said that they are the abutters to the rear, and the shed is not going into the rear yard setback, it is not three feet from his property.

END OF PUBLIC HEARING, BEGINNING OF PUBLIC MEETING:

Mr. Nehiley said that the property is not a square-shaped property, it tapers in the back, and it's normal to have a shed. He said that the Board has never heard that a shed will devalue property values, and Reeds Ferry Sheds are very nice. He said that the request is to encroach three feet into the side yard setback, and it is not encroaching into the rear yard setback. He said that he is in favor of the application, there are only so many places for them to place the shed, and it makes sense to have it where it is proposed, and to make full use of their back yard.

Mr. Shaw said that he's struggling with this one. He said that the neighbor to the rear is not being affected directly by the shed, so that is less impactful than he originally thought. He said he's not convinced that either a lesser footprint shed would be a solution, or to meet the full six-foot setback. He said that he can't quite come to meet the hardship.

Mr. Boucher said that in his drive-by in the neighborhood, he looked down to where the shed would be, and there is a berm in the back. He said that the shed would be encroaching into the left side, and that neighbor is not here, the property has a unique shape to it, and can see why they've chosen the location shown for the shed, there's definitely a berm in the yard, and will support the application.

Mr. Minkarah said that he's accepting the testimony that it would be challenging to move the shed over, and they may need to cut a tree down. He said that overall, yes, they could have a smaller shed, but the proposed size is not unusually large. He said that he is in support.

Mr. Lionel said that he echoes Mr. Minkarah's comments. He said that sheds are normal to have, and they're usually placed in a back corner of a property, and would vote in favor.

MOTION by Mr. Nehiley to approve the variance application on behalf of the owner as advertised. Mr. Nehiley stated that the Board found it would not be contrary to the public interest, because many of the houses in the neighborhood already have sheds, and

this house does not have one, so it would be in conformance with the neighborhood.

Mr. Nehiley said that the request is within the spirit and intent of the Ordinance, because the location of the shed footprint is being driven by the berm in the back of the property, and the property is an irregular shape, so it is much smaller in the back, it tapers down in the back.

Mr. Nehiley stated that substantial justice will be served, as the applicants would be able to have a shed placed in a normal location for a shed in the rear corner of the lot.

Mr. Nehiley stated that the Board had no testimony on whether surrounding property values would be diminished, but believes that surrounding property values will not be impacted, there was a letter from a rear abutter, but during discussion, the Board does not see any negative property value brought on by a new Reeds Ferry Shed.

Mr. Nehiley stated that for unnecessary hardship, the shape of the property, and the fact that there's a berm in the back of the property is driving the unnecessary hardship, the Board did have discussion about making a smaller footprint or potentially cutting down trees, but the Board feels that in this case, due to the shape of the rear lot, and the berm, it does not make sense to require the applicant to cut down one or more trees, in addition, a 12'x12' shed is not an unreasonable size for this area.

SECONDED by Mr. Boucher.

MOTION TO APPROVE CARRIED 4-1 (Mr. Shaw).

3. **City of Nashua (Owner) Chief Steve M. Buxton, Nashua Fire Rescue (Applicant) 25 Teak Drive & 840 West Hollis Street (Sheet C Lot 1320 & Sheet D Lot 54) requesting the following:**
1) **A determination whether a material change of circumstances affecting the merits of the application has occurred, or, that the application is for a use that materially differs in nature and degree from the special exception for an access driveway that was denied by the ZBA on 10-14-2025; and, if so: requesting special exception from Land Use Code Section 190-112 to work in a 40-foot "other" wetland and wetland buffer to construct a water line service from Teak Drive to the Four Hills Landfill property for the proposed Fire Training**

Facility. R9 & R30/GMZ Zones, Ward 5.

Voting on this case:

Jay Minkarah
Josh Nehiley
JP Boucher
Rob Shaw
Steve Lionel

Mr. Minkarah said that if any case has been denied by the Board, and if a similar case is submitted to the Board, the Zoning Board has to go through a "Fisher vs. Dover" determination, in which the Board must decide if there is a significant change to the application for the Board to hear the new case. He said that if the Board finds that there has been a material change to the request, or if the application is materially different, then the Board will proceed with the case.

Mr. Lionel said that he believes that it is materially different, the access road is no longer there, and the Conservation Commission has approved the water line crossing, and does believe it is materially a different request.

Mr. Shaw agreed, with the road no longer being part of this, it is a very different case.

Mr. Minkarah agreed, the access road no longer there is a major factor in this being a different case.

MOTION By Mr. Shaw that the Fisher vs. Dover determination is met, in that there is a significant difference in the case that was denied by the Board on 10-14-25, in that the access road is no longer part of the proposal.

SECONDED by Mr. Lionel.

MOTION CARRIED UNANIMOUSLY 5-0

Attorney Andrew Prolman, Prunier and Prolman, P.A., 20 Trafalgar Square, Nashua, NH. Atty. Prolman said that there was a good explanation for this case being postponed, and said that the City could have handled it better. He said that in order for the DPW Garage to start the permitting process, they have to get the Fire Training Facility water line squared away, as the Garage is going

where the Fire Training Facility is located. He said that it should have been explained in the postponement process.

Atty. Prolman gave a handout to the Board. He said that there is much less of an impact from the last request. He said it would entail temporary impacts of 400 square feet of wetland impact, and 2,075 square feet of wetland buffer impact, and when the water line is installed, it is expected to be backfilled, and the area would grow over time.

Atty. Prolman said that DPW plans on doing this themselves, they do not intend on hiring contractors. He said that they would cut a 20-foot swath off of Teak Drive. He said that there is a paper street off of the end of Gosselin, but are shifting the location away from the vernal pool. He said that the City would cut the 20-foot swath, enough for machinery to go in, a backhoe, to get out on site, dig a trench five or six feet deep, install the water line, backfill the trench with the same material, and then replant, and the expectation is that it will grow in over time.

Atty. Prolman said that they went to the Conservation Commission two weeks ago, and they added two conditions onto their previous approval, one of which is a landscape plan. He said that once the work is completed, they do not expect anyone to use this area, no bicycles, and it will grow back over time.

Atty. Prolman said that he read all the letters indicating opposition. One of the categories was comments and criticisms that the Conservation Commission got it wrong, and they had the wrong information in front of them, and that is not true, they've had this case before them three times, and they've given a positive recommendation. He said that they take their task very seriously. He said another comment was on horizontal directional boring/drilling. He said that the City is proposing a practical method, and the least invasive trenching. He said another comment was about visual impact, the cutting and clearing of the land, and this comment is not all true, and pointed out the handout he gave to the Board with four different colors on it, the red color is 900 feet, it's from the closest point, and it's all woods in there. He said it's a healthy buffer, far more than most folks have. He said that the blue color is the water line, which goes straight across that small lot that the City owns, then takes a jog, then another jog. He said that they don't believe it will be the visual impact that has the neighbors concerned. He said that there were comments on water pressure, and submitted an email from

Distribution Engineering at Pennichuck Water, and they said the 10-inch water line will not adversely affect the water pressure on Teak Drive and the surrounding neighborhood.

Atty. Prolman said that the heavy black line on the map is the new route that the fire trucks would drive on to the training facility, it is not ideal, but it holds trash trucks now, so it would be a cost savings.

Atty. Prolman said that the package contains the Conservation Commission recommendation letter with stipulations, and they have no problem with them.

Atty. Prolman said that Land Use Code Section 190-134 (F)(1) lists the criteria for a special exception, and it is listed as use #277 in the Table of Uses, which is a utility water line use. He said that the requested use will not generate any additional traffic or unduly impair pedestrian safety. He said the use will not overload any public water, sewer, drainage or other municipal systems, the special regulations are met, and it will not impair the character of the neighborhood or the immediate area once the water line is installed.

Mr. Shaw asked about the advertised Land Use Code Section for the special exception as #190-112, and the application had #190-115 (b).

Mr. Falk said any of the sections in the Wetland Ordinance may work, staff has used #112 in the past, as it directly states that special exceptions shall be reviewed for any use in the wetlands or wetland buffer.

Mr. Shaw asked to confirm that the impacts to the wetlands will be temporary.

Atty. Prolman said it would be all temporary impacts, and it will allow water flows to continue.

Mr. Shaw asked if there was any discussion about temporary fencing or something that would help to discourage any ingress to the area.

Atty. Prolman said it would be at the Board's discretion, either this Board or the Planning Board. He said that either way, it is ok with them.

SPEAKING IN FAVOR:

Tom Kelly, Fire Commissioner, Underhill Street, Nashua, NH. Commissioner Kelly said that in his time on the Commission, he's learned that what is most important are the people they hire, the equipment that's purchased to support them, and the training that the firefighters go through to execute their job. He said that the training facility is very important to be established and moved forward. He said that having a training facility out of the City limits would take them out of the community, and dilute their training, it is important to have the facility in the community in which they work, if they are out of district, they are not readily available. He said that the City's ISO rating is extremely important as well. He said that the Fire training facility has operated at the current location for over 40 years, with no complaints, and the proposed location provides a larger buffer than what exists today, and are committed to being good neighbors.

SPEAKING IN OPPOSITION OR WITH QUESTIONS OR CONCERNS:

Rody Arantes, 3 Jolori Lane, Nashua, NH. Mr. Arantes said that he's written several documents to the Board already. He said that he agrees with Commissioner Kelly in that the Fire Department should have all the resources and training they need, and are all for the Fire Department getting what they need. He played a tape recording of Chief Buxton's oral testimony about the garage. He said that there is another location in the City that they could use, and have their own space and long-term planning, rather than the short-term solutions. He said that for the service being temporary, that is not the case at all, once they remove the trees and clear land, there is not enough material evidence that this has changed much, all that has changed is that they do not have the road, and they can't let this area re-grow, because it needs to be clear to maintain the pipes, and this will damage the wetlands, and it will be much more area that will be impacted. He said that the neighbors do not want a gate here. He said that the proposed opening will end up being a road, and it does not meet criteria #4 and #5. He said that he submitted a petition with over 150 signatures. He said that the horizontal drilling would be a small job. He said that it is close to winter, and leaves have fallen, and it is easy to see through.

Paula Johnson, 15 Westborn Drive, Nashua, NH. Mrs. Johnson said that this is a sad thing that people have to keep coming out to fight for their neighborhood. She read a letter from Lee Atkins,

President of Westgate Village Crossing, of over 190 homes, the letter states that they are in opposition. She said that it's always said that this project is no big deal, but it is a big deal to these homeowners here, to cut down trees, and they'll feel that this is nonconforming, trees and vegetation will be removed. She said that the neighborhood has shown that they can do HDD drilling and it won't impact as much, and this is done a lot, it can be done, and this doesn't make any sense here. She said that she resents the fact that the City hires an attorney to go against the taxpayers who are begging the Board to not disturb the neighborhood, it goes on all the time. She said that the Board needs to do more homework on the HDD drilling, especially since the City does it already, and to remove mature trees, it takes over thirty years to regrow trees.

Jay Lustig, 14 Olympia Circle, Nashua, NH. Mr. Lustig said that over the last forty years, there has been more traffic going to the landfill, which increases the noise, additional truck traffic. He said that one of his concerns is that this will open up twenty feet through the woods, through the wetlands, and give everyone a nice view of the landfill. He said that the trees and growth act as a sound barrier.

Andreas Weiss, 6 Cimarron Drive, Nashua, NH. Mr. Weiss said that he's trained in HazMat. He said that this training occurs when chemicals being utilized in that training to extinguish the flames and the effects on the environment and the community. He said fire training of HazMat is extensive, because of health concerns to the Fire Department and Firefighters. He asked if this has been reviewed, and is the proposed water line sufficient for this training.

Mary Ann Houle, 35 Teak Drive, Nashua, NH. Mrs. Houle said that this has been identified as a temporary disruption that would grow back over time. She said that the trees will take a long time to grow, and the wetlands are a natural resource and this request is totally disregarding the wetlands and buffer.

Renee Kalogeropoulos, 31 Teak Drive, Nashua, NH. Mrs. Kalogeropoulos said with a twenty-foot wide cut through the trees, the landfill will be much more visible.

Hannah Nedzbala, 6 Valencia Drive, Nashua, NH. Mrs. Nedzbala said that she does not want this to happen, it will take years for those trees to grow back, and it will never be the same as it was. She

said that they should look at alternative locations.

Donna Bushee, 5 Jolori Lane, Nashua, NH. Mrs. Bushee said that she's been in this neighborhood for 43 years. She asked if the water can be pumped through the landfill property itself, or any other way to get water through instead of going through Teak Drive. She said that other towns would be coming to this facility too, and the trees are a healthy buffer and they improve air quality, pollution and noise, and this will be negatively impacted. She said that this is a big cost to the animals as well.

Jeannine Chulan, Main Dunstable Road, Nashua, NH. Ms. Chulan said that she is against this proposal. She said that she is support of the Fire Department and their training, but asked if they can reconsider the location.

John Collins, 20 Teak Drive, Nashua, NH. Mr. Collins said he was relieved that the road did not get approved. He said that this is the same plan, and it will still act as a road, this is just a precursor to further development. He said that there was a petition signed by 150 people against this request. He said that he feels that the neighborhood is not being listened to. He said that the training facility will be viewed right from his house.

George Stergion, 15 Cimarron Drive, Nashua, NH. Mr. Stergion said that this will not be a temporary disturbance. He said that the opening will increase noise coming in. He said one option is to stipulate using horizontal directional drilling (HDD), which doesn't disturb wetlands, doesn't remove trees, it's a simple approach. He said another option is to not do dredging, removing trees, and it's using the drilling machine. He said that this is done under highways. He said he'd prefer this be denied, it would still give the City a chance to look at an HDD drilling plan, like stated earlier in Mr. Arantes letter. He said that this does not meet stipulations four and five for approval, it is not in the character of the neighborhood. He said that the cost will not be a significant difference.

Dan Rogers, 4 Hazel Avenue, Nashua, NH. Mr. Rogers said that this needs to go back to the drawing board. He said that the fire training is very important. He said that this is another short-term issue, sooner or later, Four Hills Landfill will be filled up, and they'll be looking for another location. He said that Northwestern Boulevard is an industrial area that could be used, they should have their own facility and have it be a long-term

solution for the future.

Mike LaRocque, 22 Teak Drive, Nashua, NH. Mr. LaRocque said that he is having a hard time with points two and five. He said that there was a lot of testimony tonight that this is not in character with the neighborhood, as this is a quiet neighborhood, and the neighborhood would change. He said that there would be about five or six other fire departments that would use this facility besides Nashua, and they should find another location, it's right in the middle of a residential area, and all along, the ingress was on West Hollis Street, and this request breaks that bond.

Mr. Minkarah said that the Board received letters in opposition from the following persons, the letters are in the record:

Paul and Rosalind Sandler, 1 Twilight Drive, Nashua, NH.

Rody Arantes, 3 Jolori Lane, Nashua, NH

Petition signed by 150 residents

John Azelius and Mary Ann Houle, 35 Teak Drive, Nashua, NH

Charles Fisher, 2 Laredo Circle, Nashua, NH

Peter and Renee Kalogeropoulos, 31 Teak Drive, Nashua, NH

Mike LaRocque, 22 Teak Drive, Nashua, NH

Lee Atkins, 12 Valencia Drive, Nashua, NH

SPEAKING IN FAVOR - REBUTTAL:

Atty. Prolman said he'd like to have Chief Steve Buxton answer some questions about Hazmat.

Chief Steve Buxton, Nashua Fire Rescue, City of Nashua, NH. Chief Buxton said that when they do Hazmat training, they do not use live agents, all of the training is done using clean wood, pallets and hay, it's all natural materials.

Atty. Prolman said that the work proposed is temporary, trees do grow back over time. He said that they have addressed the criteria for a special exception and the wetlands criteria, and this will be minimal impact to the neighborhood. He said that a road being

asked for again will not meet the Fisher vs. Dover determination, that decision has been made and it's done.

Mr. Shaw asked to reference the map that Atty. Prolman submitted to the Board earlier. He said that there was the proposed roadway before, and the water line with the roadway. He said now it's just the water line following just in the same spot. He said in looking at the plan, that wetland "A" and wetland "B" could perhaps be done starting essentially where the paper street is, then making an angle following the gap between wetlands "A" and "B", so that it will help in multiple ways, it would only be one wetland crossing instead of two, it could be an angled cut-in, and it would also have a much better visual barrier in place, and it wouldn't impact Mr. LaRocque's view, he would still have his buffer of trees and whatever vegetation, and most of the real cutting in would happen more or less in front of Gosselin, and would be less impactful. He said they may want to take this back to engineering to see if this can be done, and doesn't believe it meets the special exception criteria.

Atty. Prolman said that the discussion would be to take the water line where the paper street is, and angle it between the two wetland areas. He said he'd take it back to engineering, and asked to continue this hearing. He said that the larger wetland that goes through the paper street, that is a vernal pool, and they have a 100-foot buffer, not a 40-foot buffer, and they want to stay away from the vernal pool as much as possible. He said he'd be happy to take this back to engineering, it's a fair comment. He said he would like to flush it out. He said that Brandon Quigley, Wetland Scientist, will say to stay away from the vernal pool. He said they will take this suggestion to engineering, and will provide more information about the horizontal drilling. He said they may come back with the same plan, depending on the vernal pool.

Mr. Shaw said that if that's true, perhaps consider some sort of angled entrance, such that they do their best to provide existing vegetated buffer to the Teak Drive residents.

MOTION by Mr. Shaw to table this case to allow the applicant to get some determination from engineering regarding the items spoken about for the path to the proposed water line, if it can be put either between wetlands "A" and "B", coming off of the paper street intersection, or some other angled ingress, and to allow the applicant to investigate using horizontal drilling as well.

Mr. Falk said the first meeting in January is January 13, 2026, it will allow their team to get this information together.

Atty. Prolman said if this is tabled, the maintenance garage will probably be pushed back.

SECONDED by Mr. Lionel.

Mr. Nehiley said he is not in favor of pushing this back, these folks have been here multiple times, and said that when he drove by there today, the wetland areas are bone dry, it's just wet a couple months of the year.

Mr. Minkarah said that the Board has had a request for additional information, and the applicant is amenable to providing that. He said he'd support a motion to table this request, and it appears the applicant has no objection.

Mr. Patry said he'd support a motion to continue, even though he is not voting on this.

Mr. Falk said that this would be tabled to a date certain, so staff would only send out new information from the applicant, and suggested the Board keep all the information sent to them for this case.

Mr. Minkarah said that he hopes the applicant brings the engineer and have the wetland scientist available for their next meeting.

MOTION TO TABLE TO JANUARY 13, 2026 APPROVED 4-1 (Mr. Nehiley).

Mr. Minkarah said that this hearing is tabled to January 13, 2026.

4. **Heidi St. Hilaire (Owner) 4 Rowley Street (Sheet F Lot 387) requesting the following: 1) special exception from Land Use Code Section 190-112 to work in the 75-foot prime wetland buffer of the Nashua River to place a 10'x20' shed in front of property, and a 6'x10' sauna in left rear side of property on an existing cement pad; and, 2) variance from Land Use Code Section 190-31 to encroach 18 feet into the 20 foot required front yard setback for 10'x20' shed; and, 3) variance from Land Use Code Section 190-31 to encroach 2 feet into the 6 foot required left side yard setback to install a sauna. R9 Zone, Ward 1.**

Voting on this case:

Jay Minkarah
Josh Nehiley
JP Boucher
Rob Shaw
Steve Lionel

Heidi St. Hilaire, 4 Rowley Street, Nashua, NH. Ms. St. Hilaire said that she purchased the property in 2013, and grew up at 2 Rowley Street, next door. She said her sister owns the house at 2 Rowley Street. She said that the house is right on the river, it's very beautiful. She said that her request will not harm the wildlife or the vegetation. She said that she is requesting two structures, they are pre-fabricated, and will not be built on-site, just delivered and set in place. She said that the house was built in 1969, and virtually the entire property is in the wetland buffer.

Ms. St. Hilaire said that they are requesting support for a utility shed, 10'x20', for the front west corner of the property, it used to have an old tent-style garage there, and it used to be two feet from the street. She said that there are two very large trees, with lots of roots in the front yard. She said that the west end of the front is the best place for the utility shed, even though it's close to the street, the house is the last one on a dead-end street, with limited to no traffic, and it's away from the water, and the ground is dry.

Ms. St. Hilaire said that she went to the Conservation Commission meeting on 11-5-25, and they did a site visit, and gave an unfavorable recommendation, and suggested a second site on the east side of the front yard, the east side is closer to the direct neighbor, and would have to cut one of her tree limbs, also, it is right next to the driveway, and there are four cars parked there. She said that another recommendation is that for the boat on a trailer, that it be moved into the driveway. She said that the east side is more congested. She said it's their preference is for the shed to go on the west side corner.

Ms. St. Hilaire said that the sauna is 6'x10', it would go in the back yard on an existing concrete slab, it had an old rusty shed that was removed recently. She said it's 10'x10', and it's in the wetland buffer as well, and it would be about 3 feet from the

property line. She said that the Conservation Commission was ok with the sauna, and asked that bushes and ground cover be added on the slope of the back yard to reduce runoff and erosion.

Ms. St. Hilaire said that she meets the spirit and intent of the Ordinance, these accessory structures will improve the property, and do no harm, and will increase the curb appeal, and there will be no impact to the river bank or to the wetlands. She said that for substantial justice, everyone else in the neighborhood has a shed, and due to the unique circumstances of the house location so close to the water, she can't due to the buffer. She said it will allow reasonable use at no cost to environment or to the public. She said that the shed will match the house, the road is short and is a dead-end, and the variances are necessary, and the sauna is going to be on an existing pad.

Mr. Nehiley asked if the Conservation Commission request is adhered to, and the shed is moved to the east side, would it be out of the 75-foot wetland buffer.

Ms. St. Hilaire said that it still would be in the 75-foot buffer, but not as close to the road.

Mr. Nehiley said that the neighbor at 3 Rowley had some concerns about snow melt, and where snow would be plowed.

Ms. St. Hilaire said that they plow directly down the dead-end street, and push the snow to the end, and it shouldn't affect the snow removal at all.

Mr. Lionel asked where the boat would go.

Ms. St. Hilaire said it would go near the cars. She said that it's on a trailer now.

Mr. Boucher asked when the shed was removed.

Ms. St. Hilaire said about 5-7 years ago, it was taken down, and it was there for a long time.

SPEAKING IN FAVOR:

Jaclyn Hackett, 2 Rowley Street, Nashua, NH. Mrs. Hackett said that she is in full support of the request. She said that they've done numerous repairs and updates to the house, and has improved

the look of the property, and this will not impact the wetlands at all.

SPEAKING IN OPPOSITION OR WITH QUESTIONS OR CONCERNS:

Mr. Minkarah read a letter with objections from Herb Covey, 3 Rowley Street, Nashua, NH. He said that he has drainage and snow removal concerns, and is against putting in the shed and the sauna.

SPEAKING IN FAVOR - REBUTTAL:

Joe O'Brien, 4 Rowley Street, Nashua, NH. Mr. O'Brien said that he doesn't understand the abutters concerns about the snow, and nothing about the shed will impact the snow. He said that their boat is for sale, and it's wrapped for winter, but even moving it, it would still be in the wetland buffer no matter where it is. He said that fewer roots would be impacted by placing the shed on the west side of the lot as proposed, the other side is right under a power line and would need tree trimming.

Ms. St. Hilaire said that when the road is plowed, it would have nothing to do with the shed location, it would not impact snow removal.

Mr. Boucher asked to confirm if the shed were placed on the east side, if it would have the same setback to the front.

Ms. St. Hilaire said it would be further back, but still in the wetland buffer.

Ms. St. Hilaire handed out a proposed planting plan to the Board members, with an alternate shed location.

Ms. St. Hilaire said that if the shed is on the preferred west side, it's about five feet back from the road, and if it's on the east side, it would be parallel to the driveway, and close to the neighbor's property, there are two trees in that area, and the lot slopes down.

END OF PUBLIC HEARING, BEGINNING OF PUBLIC MEETING:

Mr. Boucher said that wherever you park a car or a boat on this property, it could be a potential hazard being in the buffer. He said that there isn't an ideal location. He said he's trying to understand the Conservation Commission's recommendation to

relocate the shed to the other side of the property.

Mr. Minkarah said that the only relevance to that is as it may relate to the criteria, or that they saw it as a reasonable alternative. He said that he doesn't believe that the Board can decide if the shed should be relocated to that other side of the property, and it wasn't advertised that way, or submitted that way.

Mr. Boucher said that the Board relies on the Conservation Commission's recommendations, but in this case, he doesn't see the detriment to having the shed being where it was proposed on this lot, the whole lot is in the buffer, it's on a dead-end, and there was a structure there for many years and no matter where the shed goes, it's in the buffer, and will support the application as submitted and advertised.

Mr. Shaw said the reason they wanted it to move, it would be further away from the wetland, but in looking at this, it comes down to a few feet. He said the Conservation Commissions recommendation isn't something the Board can consider. He said he is in support of this, it is a unique property, the entire lot is in the wetland buffer, but the request does make sense and there are not any great alternatives, the request is reasonable and not excessive, and consistent with how the property has been used for a long time, especially the concrete pad.

MOTION by Mr. Minkarah to approve the variance applications on behalf of the owner as advertised. Mr. Nehiley stated that the granting of the variances would not be contrary to the public interest, because it would not adversely impact the public health, safety or welfare, there was a letter from an abutter who was concerned with snow removal, and from testimony, the proposed shed is entirely on the applicants property, and there will not be any significant change to the neighborhood, as sheds are not uncommon, and it's a dead-end street.

Mr. Minkarah said that the request is within the spirit and intent of the Ordinance, for the reasons previously stated, and also, because of the setbacks are there to help with overcrowding and to help with open space between buildings, and in this case, there really is no reasonable alternative, the setback at issue is from a dead-end road, where there is really very little impact to anyone else.

Mr. Minkarah stated that substantial justice will be served to the owner, because it will allow reasonable use of the property, a shed is a very typical use in this part of the country, and the concrete pad for the sauna is an existing pad, so there is no further encroachment on that side.

Mr. Minkarah stated that the Board did not have any testimony about the value of surrounding properties being affected, there was an abutter who had concerns, but it was related to snow removal.

Mr. Minkarah stated that for unnecessary hardship, owing to special conditions of the property that distinguish it from other properties in the area, denial of the variance would result in unnecessary hardship, as the Board has noted, this property is unique, given its location on the Nashua River, its size, location at the end of a dead-end street, and there really is nothing they can do because the lot is located in a wetland buffer, therefore, there is no fair and substantial relationship between the general public purpose of the ordinance provision and the specific application of that provision of the property because the use is a reasonable use.

MOTION by Mr. Minkarah to approve the special exception as advertised on behalf of the applicant. Mr. Minkarah said that it is listed in the Table of Uses, Section 190-112, the shed and sauna are both accessory uses.

Mr. Minkarah said that the use will not create undue traffic or unduly impair pedestrian safety, but there was concern about snow plowing.

Mr. Minkarah said that there is no indication that the proposed use will overload public water, drainage, sewer systems or any other municipal systems.

Mr. Minkarah said that the special regulations set forth are fulfilled.

Mr. Minkarah said that the proposed use will not impair the integrity or be out of character with the district or immediate neighborhood, and will not be detrimental to the health, morals or welfare of the residents, and these issues were also covered in the variance criteria.

Mr. Minkarah said for the special conditions, the use or activity

proposed cannot be reasonably avoided, the entire property is within a wetland buffer. He said that the least damaging route and methodology have been selected. He said that the Board had testimony from the Conservation Commission, and the Board discussed an alternative location for the shed, but that alternative location is also within the wetland buffer area.

Mr. Minkarah said that reasonable and acceptable impact mitigation measures have been incorporated where necessary and appropriate to minimize wetland loss or degradation.

Mr. Minkarah said that the overall impact of encroaching into the wetland or buffer area is necessary for the productive use of adjoining buildable land, as such nonencroachment, is outweighed by the benefits thereby derived, as the use is reasonable and there is no place to put the uses that is not impacted by the buffer.

Mr. Minkarah stated that there is no significant impact on habitat or endangered species will result, and there was no testimony on that, it is clearly a residential lot.

Mr. Minkarah said that the best available adequate erosion and sedimentation control methods are incorporated.

Mr. Minkarah stated that the project will not impair the stability of a water body's bank.

Mr. Minkarah stated that the wetland and buffer function will not be impaired.

Mr. Minkarah said that the Board is incorporating the condition from the Conservation Commission that they need to provide a landscape plan with three rows of native shrubs on the east side of the property and the ground cover on the slope to address runoff.

SECONDED by Mr. Shaw.

MOTION TO APPROVE SPECIAL EXCEPTION AND VARIANCES CARRIED 5-0.

- 5. Silver Lining Development, LLC (Owner) 16 East Glenwood Street and "L" Linton Street (Sheet 129 Lots 187 & 259) requesting special exception from Land Use Code Section 190-112 to impact approximately 6,500 sq.ft of wetland buffer area to construct a private shared driveway off Linton Street, along with**

associated site improvements, for the future construction of three single-family residential lots. RA Zone, Ward 7.

Voting on this case:

Jay Minkarah
Josh Nehiley
JP Boucher
Rob Shaw
Steve Lionel

Attorney Andrew Prolman, Prunier and Prolman, P.A, 20 Trafalgar Square, Nashua, NH. Atty. Prolman said that this case was before the Board in July, for several dimensional variances. He said after that approval, they proceeded to the Conservation Commission, the letter is in the package, it was with a 4-3 unfavorable recommendation. He said that they believe that they meet the special exception criteria, and with the Conservation Commission letter, there were six stipulations. He said that the buffer being impacted is not a pristine wetland, and it's already disturbed with a sewer line, it is not a vernal pool or anything pristine about it, and it is not high quality. He said that should the Board approve this, it still has many steps to go, with the paper street issue and Planning Board.

Mr. Nehiley said that the neighbors had concern with water runoff, and getting flooded downstream.

Atty. Prolman said that was a concern, but the engineered plans indicate that this project will work, and it will improve the situation out there today.

Ethan Beals, Project Manager, Hayner Swanson, Inc., 3 Congress Street, Nashua, NH. Mr. Beals handed out a package to the Board members. He said that they have met with the Conservation Commission three times, and did their best to respond to all their questions.

Mr. Beals said that from the package, the first one is a revised application, they've updated the project from the original design, and therefore, it is a slightly reduced area of impact. He said that the updated design contemplates a shared driveway off of the Linton Road extension, and adds porous pavement, and they've relocated the car turnaround and other small impervious areas. He said that they've re-graded and pulled back the slope to remove a

previously proposed retaining wall that was located in the buffer, and as such, have reduced the buffer impact area by about 450 square feet, bringing the new buffer impact area to 6,050 square feet. He said that there are no direct wetland impacts.

Mr. Beals said that in Figure B, of the 6,050 square feet of buffer impact, about 3,200 square feet, or, 53% of the buffer is currently disturbed or is a yard area, or is part of the sewer easement that bisects the property. He said that another 1,777 square feet fall within that same sewer easement, with the City having rights to maintain it.

Mr. Beals said that in Figures C, D and E, figure C is a stormwater management summary, and figures D and E are maps to go along with this. He said that there were many questions about stormwater management when this was first presented, but at that time, the project was still preliminary, and now there's been more study and review of the stormwater management. He said that a good portion of the water on Linton Street flows in a westerly direction across the subject property and into the low-lying wetland area. He said that Figure D shows the limit of the drainage area. He said that the updated design contemplates a shared driveway design, and Figure E shows the post development drainage pattern, including the area that will receive treated stormwater, outlined in red. He said the porous pavement is a qualified best management practice that provides treatment of runoff, so it demonstrates reduction in peak rates of runoff compared to the existing conditions of today. He said that it is their professional opinion that the project provides significant stormwater management improvements when compared to today's conditions, with both qualitative and quantitative treatment of runoff. He said that Figure F in the package is a draft easement that would be recorded along with the property, it requires on-going maintenance for the porous pavement and violation language. He said that Figure G is the wetland field report, provided by the projects wetland scientist. He said that although the Conservation Commission forwarded an unfavorable recommendation, they are in support of the stipulations.

Mr. Nehiley asked what led to the Conservation Commissions unfavorable vote.

Atty. Prolman said that in his opinion, they didn't like the number of trees that were being cut down, in or out of the buffer.

Mr. Nehiley asked if they have presented this updated plan to the

neighbors, as the first time it was presented to the Board, there were quite a few neighbors in attendance, and is surprised that no one is here tonight.

Atty. Prolman that there were no neighbors at the Conservation Commission meeting either, and they haven't done any additional outreach to the neighbors. He said that he is friends with an immediate abutter, and has kept him up to date.

Mr. Nehiley said that it looks like there is nothing the Board can do with those proposed three lots, as they will be in the buffer zone.

Mr. Beals said that Lot 259 is an existing lot of record, and there is the subdivision of Lot 187 into two lots. He said that there is topography out there, it does fall off, and they are going to slide that slope out a little bit.

Mr. Nehiley asked to confirm that the houses would not be in the buffer, just their yards.

Mr. Beals said yes, they worked hard to put every bit of pavement and impervious area out of the buffer, but the roofed areas will not be in the buffer.

SPEAKING IN FAVOR:

No one.

SPEAKING IN OPPOSITION OR WITH QUESTIONS OR CONCERNS:

Mr. Minkarah read a letter in opposition from Mark Connolly, 36 East Glenwood Street, Nashua, NH.

SPEAKING IN FAVOR - REBUTTAL:

Mr. Beals said that they've done a detailed stormwater management analysis of not only the subject property, but a good portion of the abutting neighborhood, and there is a clear improvement for the quantity and quality of the stormwater. He said in terms of snow, it will be an on-going element that needs work with the operations of the City, there are a lot of nuances when you build a shared driveway on city right-of-way land, it's still early in this process, with other steps to follow, and this will be on-going element.

END OF PUBLIC HEARING, BEGINNING OF PUBLIC MEETING:

Mr. Lionel said that it seems that they've done an exemplary good job with addressing the concerns, and re-designing it to address the issues that have been brought up, and is in favor.

Mr. Shaw said that he is in support, and by them doing all this work, it will be a net positive to address these concerns, and it will be a good outcome with the additional analysis. He said he is in support.

Mr. Nehiley said that there is quite a drop-off there, and these folks need to have the ability to develop their land, and this plan has gone above and beyond. He said they've done a good job of keeping the houses out of the buffer zone, and the end net result of this will be better. He said that the snow plow drivers will figure it out, they're professionals, they do it every year, and is in favor.

Mr. Minkarah said that he agrees.

MOTION by Mr. Boucher to approve the special exception as advertised on behalf of the applicant. Mr. Boucher said that it is listed in the Table of Uses, Section 190-112.

Mr. Boucher said that the use will not create undue traffic or unduly impair pedestrian safety.

Mr. Boucher said that there is no indication that the proposed use will overload public water, drainage, sewer systems or any other municipal systems.

Mr. Boucher said that the nine wetland special regulations set forth are fulfilled.

Mr. Boucher said that the proposed use will not impair the integrity or be out of character with the district or immediate neighborhood, and will not be detrimental to the health, morals or welfare of the residents.

Mr. Boucher said from the November 12, 2025 Conservation Commission meeting, even though they had an unfavorable recommendation, the Boards motion is to approve this request, and to also bring forward the six special conditions and adopt them as part of the approval.

SECONDED by Mr. Shaw.

MOTION TO APPROVE CARRIED UNANIMOUSLY 5-0.

MISCELLANEOUS:

REGIONAL IMPACT:

The Board did not see any cases of Regional Impact for the next meeting.

Mr. Shaw asked about the last item on the agenda, for Granite Street.

Mr. Falk said that it was remanded back from the Housing Appeals Board, to have the Board provide meaningful findings of fact based on the certified record as existed before the ZBA hearing of 9-26-2023.

MINUTES:

November 12, 2025:

Mr. Patry said on page seven, the paragraph that starts with Andrew Piper, the last word of the third line, the word should be "space", and four lines down from that, there is an extra comma after yard.

Mr. Patry said on page eight, where it says end of public hearing, line four should start with "are", instead of "it."

MOTION by Mr. Lionel to approve the minutes with the proposed changes, waive the reading, and place the minutes in the file.

SECONDED by Mr. Nehiley.

MOTION CARRIED UNANIMOUSLY 5-0.

ADJOURNMENT:

MOTION by Mr. Shaw to adjourn the meeting at 9:37 p.m.

Submitted by: Mr. Falk, Clerk.

CF - Taped Hearing

Zoning Board of Adjustment

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